

Court No. - 32

Case :- WRIT - C No. - 17553 of 2022

Petitioner :- Vrijshyam

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

Heard learned counsel for the petitioner, Sri Narendra Kumar Tiwari, learned counsel who has put in appearance on behalf of respondent nos.2 & 3 and learned Standing Counsel for the State- respondent.

The writ petition has been filed with a prayer to challenge the recovery notice/citation dated 28.2.2022 issued by the Executive Engineer, Vidyut Vitran Khand-I, Fatehpur.

The appropriate statutory remedy is to challenge the final assessment by approaching the competent authority under Section 127 of the U.P. Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005.

After a brief submission, learned counsel for the petitioner is ready to file an appeal to challenge the said assessment made by respondent no.3. However, he seeks interim protection till disposal of the stay application to be filed in the appeal.

In view of the above, without entering into the merits of the case, the petition is disposed of with a direction to the petitioner to file an appeal in accordance with the provisions of Section 127 of the U.P. Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the competent authority within a period of three weeks from today along with a copy of this order.

In case, an interim prayer/stay application is filed in appeal, the

same shall be considered and decided by the concerned authority, preferably within a period of two weeks from the date of receipt of the stay application, by passing a reasoned and speaking order in accordance with law. The appeal itself shall also be decided preferably within a period of next six weeks from the date of the filing of the same.

For a period of eight weeks from today or till the stay application is decided by the concerned authority, whichever is earlier, the recovery notice/citation dated 28.2.2022 issued by the Executive Engineer, Vidyut Vitran Khand-I, Fatehpur against the petitioner shall not be pressed into service.

Order Date :- 23.6.2022

M. Tarik